

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002678

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JENNIFER LAMERS

and

DEFENDANTS: MAGNUS JULLE
LE'VICKI ET AL.

NATURE OF PROCEEDINGS: MOTION - LEAVE

RULING

Plaintiff Jennifer Lamers ("Plaintiff") seeks leave to file a third amended complaint. Defendants Magnus Julle Le'Vicki, Corinthian Yacht Club of San Francisco, Kevin Roesler and Warren Lee ("Defendants") oppose the filing.

LEGAL STANDARD

Under Code of Civil Procedure section 473, subdivision (a)(1), the Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding. As judicial policy favors resolution of all disputed matters in the same lawsuit, courts liberally permit amendments of the pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Denial is rarely justified unless opposing parties demonstrate unreasonable delay plus prejudice if the motion is granted. A mere showing of unreasonable delay by the plaintiff without any showing of resulting prejudice to defendants is an insufficient ground to justify denial of the plaintiff's motion. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Prejudice exists where the amendment would require delaying the trial, resulting loss of critical evidence or added costs of preparation, and an increased burden of discovery, inter alia. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Generally, arguments attacking the merits of the proposed amendments do not justify denial of the motion. Courts allow the amendment and then let the parties test the legal sufficiency in other appropriate proceedings such as a demurrer. (*See Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, and *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

A party requesting leave to amend must also comply with California Rules of Court, rule 3.1324. Compliance with the Rules of Court is satisfied by including a copy of the proposed

amended pleading, detailing what changes will be made from the previous pleading by stating what allegations are to be deleted or added as compared to the previous pleading including page, paragraph and line number, and attaching a declaration by plaintiff's counsel, as to: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(a)-(b).)

DISCUSSION

In this case, Plaintiff has complied with California Rule of Court 3.1324 by providing a redlined version of the proposed third amended complaint which details the changes to me made from the current complaint. (Exh. W to Chung Decl.)

Plaintiff asserts that although she sought discovery in October 2024, she did not receive pertinent discovery about the tortious conduct that led to her suspension until March 31, 2026 and that documents continue to be outstanding. At this time, Plaintiff learned that Defendant Le'Vicki did not make defamatory statements about Plaintiff to board members and that board members did not vote to ban Plaintiff from the club but asked Defendant Roesler to request that Plaintiff take a four month pause from the club. Plaintiff asserts that Lee then made a false statement that Plaintiff drunkenly told Lee that Defendant Le'Vicki had raped her, and that Roesler never told the board about this, but sent Plaintiff an email about an indefinite suspension.

According to Plaintiff these new facts have resulted in the need to drop the cause of action for defamation against Defendant Le'Vicki, but to add new facts and claims regarding aiding and abetting. Additionally, Plaintiff believes that there are new facts necessary for pleading as to the intentional infliction of emotional distress claim.

Defendants oppose the motion asserting that there is no good cause for the delay in waiting to file the motion from March 2026 until July 2026. Defendants also assert that the causes of action will be untimely such that amendment as to some of the claims would be futile. Defendants further raise concerns about the prejudice resulting from late amendments in light of the pending motion for summary judgment and trial.

In light of the delayed discovery, the court finds that Plaintiff has adequately justified the reasons for delay in seeking the amendment and has, therefore, satisfied all requirements for leave to amend. As to Defendants claims that the amendments would be futile, those claims may properly be tested once the complaint is amended.

In light of the upcoming motion and trial date, the court agrees that the trial date should be continued for 180 days to allow Defendants to evaluate and respond to the amended complaint.

The motion for leave to amend is granted. The parties shall appear to reschedule the trial date.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002924

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: LANDMARK HOME SOLUTIONS, LLC vs. DEFENDANT: FREDERICK SHEIN	
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NATURE OF PROCEEDINGS: MOTION – EXTEND TIME

RULING

This matter is continued to October 7, 2026 at 1:30 pm per the parties' stipulation

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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